

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 06/29/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
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Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02467
CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.
*HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT
FILED BY:
***TENTATIVE RULING**

The Court has reviewed the latest stipulation of the parties to continue the hearing on this motion. (See Stipulation filed on or about June 24, 2026.) The parties are free to continue to meet and confer about Plaintiff's proposed second amended complaint. However, the Court **DENIES** the request for a further continuance, and rules on the motion as follows.

Plaintiff Christina Cuccia Cravat's Motion for Leave to File a Second Amended Complaint is **GRANTED**.

Background

Plaintiff filed the original complaint on October 4, 2023, asserting wrongful termination and FEHA-based discrimination claims arising from defendant Bio-Rad's COVID-19 vaccination policy and her termination on November 4, 2021. Plaintiff retained counsel in January 2024 and wished to amend the complaint. On May 3, 2024, the parties stipulated to dismiss individual defendants and further agreed that if meet and confer efforts failed within 45 days, plaintiff would file a motion for leave to amend. Plaintiff did not file a motion to amend by the deadline by the agreed-upon deadline of June 17, 2024.

Plaintiff filed a second case in this court involving the same parties and facts (No. C25-00892), apparently to preserve claims authorized by a second CRD right to sue letter. On June 25, 2025, the Court granted defendant's ex parte application to consolidate the two cases, designating this case as the lead case, and staying defendant's responsive pleading deadline pending resolution of plaintiff's anticipated motion for leave to amend.

Plaintiff filed this motion on November 21, 2025 and it was heard on April 13, 2026. The Reed Declaration submitted with the motion was defective, lacking a signature under penalty of perjury. The Court continued the motion to April 27, 2026 for plaintiff to file a supplemental declaration of counsel no later than April 17, 2026. Plaintiff timely filed that declaration. The parties stipulated to continue the hearing, first to June 15, 2026, and then to June 29, 2026.

On June 10, 2026, the Court signed a stipulation continuing this motion to June 29, 2026. The stipulation provided that if the parties could not agree on a proposed form of second amended complaint, they would file a joint list of disputed issues along with competing versions of a second amended complaint.

Analysis

The procedural deficiencies identified in the motion have been cured. Plaintiff submitted a supplemental declaration signed under penalty of perjury. In defendant's original opposition brief, it argued that plaintiff's proposed pleading contained conclusory allegations unsupported by fact, that certain claims are time barred, that claims fail to relate back to the original complaint, that the workers compensation exclusivity rule applies, and that the continuing violation doctrine does not save time-barred allegations. Defendant also argued it would suffer prejudice if leave were granted because of a dramatic expansion of claims, an associated increase in discovery scope and costs, and the staleness of evidence almost four years after plaintiff was terminated.

The Court finds defendant's prejudice argument unpersuasive because the claims Plaintiff seeks to add are at issue in the consolidated action. Denying leave to amend would not eliminate those claims but would force them to proceed under a separate pleading, unnecessarily complicating the litigation. Defendant's remaining arguments go to the sufficiency of the proposed pleading. Courts generally do not consider such arguments on a motion for leave to amend because these matters can be addressed via an appropriate pleading challenge, an evidentiary-based motion, or at trial. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

The parties' stipulation contemplates that if they cannot reach agreement, they will submit a joint list

of disputed issues and competing versions of a second amended complaint, leaving it to the Court to decide which version gets filed. The Court declines to proceed on that basis. Plaintiff may file plaintiff's proposed second amended complaint. Defendant will have the opportunity to challenge the sufficiency of the pleading once it is filed.

Disposition

The motion is **GRANTED**. Plaintiff shall file and serve an amended complaint no later than July 15, 2026. Defendant's time to respond shall run from service. PLAINTIFF TO PREPARE THE ORDER AFTER HEARING.

2. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
***HEARING ON MOTION IN RE: SEAL**
FILED BY: GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
TENTATIVE RULING:

Defendants Gold Coast Pipelines, Inc. and David Seeno ("Defendants") filed a Motion to Seal on February 13, 2026 (the "**2/13/26 Motion to Seal**"). The Motion to Seal was set for hearing on June 29, 2026. The motion is unopposed.

This 2/13/26 Motion to Seal seeks sealing of portions of several pleadings filed in connection with a prior discovery referee motion (the "Prior Discovery Referee Motion").

That motion was ruled upon by the Court. See Order entered March 2, 2026 (as to hearing conducted February 23, 2026 after being advanced from May 11, 2026) (the "3/2/26 Order").

This matter is one of a number of motions to seal filed along with various motions and other pleadings. In its discretion, the Court makes certain further orders herein as to the other pending motions to seal, as discussed below.

On January 6, 2026, plaintiff David T. Seeno ("Plaintiff") filed a motion to compel further responses to discovery. That same day, a companion motion to seal ("**1/6/26 Motion to Seal**") was filed Plaintiff. Both motions were given a hearing date of June 22, 2026. The 1/6/26 Motion to Seal was later continued to July 27, 2026.

On February 25, 2026, Plaintiff filed a Demurrer to the Cross-Complaint of Cross-Complainant and Defendant Albert D. Seeno, Jr. ("ADSJ"). That same day, a companion motion to seal ("**2/25/26 Motion to Seal**") was filed Plaintiff. Both motions were given a hearing date of July 27, 2026.

Background

This motion seeks to seal portions of the reply papers submitted in connection with the Prior Discovery Referee Motion (the "Portions to be Sealed"). The subject pleadings were filed on February 13, 2026 with the Portions to be Sealed redacted from the public filing.

The Court has already heard and decided the underlying motion to which the pleading relates. It does not appear that the Court ruled on the Motion to Seal as part of that ruling. See Order entered February 5, 2026. See 3/2/26 Order.

Analysis

Under the California Rules of Court, "[u]nless confidentiality is required by law, court records are presumed to be open." Rule 2.550(c) of the California Rules of Court ("CRC"). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. "Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons." *Id.* (emphasis added).

The supporting declaration describes that the moving parties only seek to seal certain very specific portions of the subject pleadings. See Declaration of Dillon Ostlund, ¶¶2-5.

The unredacted versions of both pleadings were lodged for the Court's review. The redacted materials are represented to include confidential information that presents a risk of serious personal or other injury to the parties to this action and other third parties if disclosed publicly. *Id.* at ¶3. The Portions to be Sealed appear narrowly tailored.

Accordingly, the Court finds that there exists an overriding interest that overcomes the right of public access to the specific Portions to be Sealed. The Court further finds that this overriding interest supports sealing the Portions to be Sealed and there exists a substantial probability that the overriding interest will be prejudiced if the Portions to be Sealed are not sealed. Subject to resolution of the issue discussed below, the Court further finds that the Portions to be Sealed are narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

Disposition

The Court finds and orders as follows:

1. The **2/13/26 Motion to Seal** is **GRANTED**. The Court orders the sealing of Portions to be Sealed

that were filed provisionally under seal.

2. In addition, the Court orders the parties to meet and confer within two weeks of notice of entry of this order regarding all other pending motions to seal, including, but not limited to, the 1/6/26 Motion to Seal and the 2/25/26 Motion to Seal. If agreeable, the parties shall promptly prepare and submit a single Stipulation and Order regarding the granting of all such motions for the Court's review and approval.
3. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C24-03088

CASE NAME: SHEILA WOODRUFF VS. FCA US, LLC.

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF SHEILA WOODRUFF'S DEPOSITION AND PRODUCTION OF DOCUMENTS**

FILED BY: FCA US, LLC.

TENTATIVE RULING:

Defendant FCA US LLC ("Defendant") filed a Motion to Compel Plaintiff Sheila Woodruff's Deposition and Production of Documents and Request for Monetary Sanctions on April 22, 2026 (the "Motion to Compel Deposition"). The Motion to Compel Deposition was initially set for hearing on November 9, 2026. By the Court's Order issued May 7, 2026, the motion was advanced for hearing on June 29, 2026. The motion is opposed.

Plaintiff Sheila Woodruff ("Plaintiff") filed opposition papers on June 16, 2026. The Court exercises its discretion to consider these papers.

Reply papers were filed on June 22, 2026.

Background

Plaintiff initially noticed the deposition of Plaintiff for February 26, 2025, along with certain document production requests. See Declaration of Jennah Feeley filed April 22, 2026 ("Feeley Decl."), ¶13 and **Exhibit A** thereto.

After objections were served indicating Plaintiff's unavailability and interposing various objections to the document production requests, but no action was taken until the deposition was re-noticed for February 24, 2026. See Feeley Decl., ¶¶13-5.

A new set of objections was served on March 10, 2026. Feeley Decl., ¶16 and **Exhibit E** thereto.

A Second Amended Notice of Deposition followed. Feeley Decl., ¶17 and **Exhibit F** thereto.

A further set of objections was served on March 18, 2026. Feeley Decl., ¶19 and **Exhibit H** thereto. As Plaintiff had done before, the objections asserted that the date was unavailable for their side and noted that the date had been chosen without consultation. See Feeley Decl., Plaintiff's Objections dated March 18, 2026, **Exhibit H** ("This deposition was unilaterally noticed by Defendant for a date and time on which Plaintiff and/or Plaintiff's counsel is unavailable.").

The moving party's declaration corroborates this assertion, and it appears Defendant just kept re-noticing dates of its own choosing. See Feeley Decl., ¶15 *et seq.*

Analysis

As described in the opposition declaration, it appears that the parties have “reached a written agreement confirming the date of Plaintiff’s deposition.” Declaration of Tasha-Luna Khatchadourian filed June 16, 2026 (“Khatchadourian Decl.”), ¶16.

While the matter appears moot, Defendant’s reply indicates that it is persisting in this motion because “Plaintiff’s firm has a pattern and practice of avoiding deposition.” This relies on assertions about Plaintiff’s counsel practices in other litigation.

This Court is not going to embark on the exercise of attempting to evaluate the parties’ relative efforts to coordinate depositions in multiple other cases. See Declaration of Kirsten McNelly Bibbes filed April 22, 2026.

What the Court can glean from the description of the efforts in this case is that Defendant’s counsel contributed the stalemate and delay regarding the setting of the deposition.

Although the deposition notices were each time accompanied by a letter requesting “alternative availability,” such requests came with extraordinary short timeframes for the demanded responses. See e.g. Feeley Decl., **Exhibits D and G**. One does not make “every effort” “to resolve any disputes” by unilaterally setting deposition dates and then demanding each time that alternative dates be provided within a scant few days of the “meet and confer” letter. See e.g. Feeley Decl., **Exhibit G** (emailed meet and confer letter dated March 16, 2026 demanding response “by no later than March 18, 2026...”).

Plaintiff’s counsel certainly also contributed to the impasse and delay by relying on repeated objections without themselves engaging in robust efforts to reach out and follow up to find a mutual convenient date for the deposition—at least before whatever last minute discussions led, finally, to the current date being set.

This impasse might well have been solved by simply picking up a phone and conferring on a deposition date. Neither side, it seems, was willing to break the ongoing stalemate by making a truly earnest effort to do so.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Deposition is DENIED. All requests for sanctions are DENIED.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C24-03337
CASE NAME: MARICRUZ DIMAS-MARTINEZ VS. HELIO DIMAS
HEARING ON SUMMARY MOTION
FILED BY: DIMAS-MARTINEZ, MARICRUZ
TENTATIVE RULING:

Before the Court is Plaintiff Maricruz Dimas-Martinez’s Motion for Summary Judgment.

Plaintiff’s MSJ was filed on February 17, 2026, with a hearing date set for June 29, 2026. As such, any opposition as due on or before June 9, 2026. (Code Civ. Proc. § 437c (b)(2).) As of the date of the

drafting of this Tentative Ruling – well after that date – no opposition has been received by the Court.

Factual Background

The Complaint includes a single cause of action for partition. The property at issue is real property located at 2338 Lowell Avenue in Richmond, California (the “Property”). (UMF 3, Deal Decl. ¶ 2.)

Plaintiff and Defendant Helio Dimas are siblings. (UMF 1.) Defendant Susana Dimas is Helio Dimas’ wife. (UMF 2.) On or about July 27, 1994, Plaintiff, Defendant Helio Dimas and their non-party brother Manuel Dimas were transferred title to the Property. (UMF 3.) On November 1, 2024, Manuel Dimas transferred his interest in the Property to Helio. (UMF 4.) On that same date, Helio transferred his interest in the Property to himself and his wife Susana via a grant deed. (UMF 5.)

Shortly thereafter, Helio demanded that Plaintiff transfer her ownership interest in the Property to him. (UMF 6.) Plaintiff requested ‘fair compensation’ for her share, but Helio refused. (*Ibid.*)

At this time, the Property is jointly owned by Plaintiff, Helio, and Susana. (UMF 7.) Neither Helio nor Susana will agree to a voluntary sale of the Property. (UMF 8.) Plaintiff filed her Complaint seeking partition on December 10, 2024, seeking partition by sale as physical division of the Property is impracticable. (UMF 9.) Prior to initiating litigation, Plaintiff’s counsel reached out to Defendants to let them know that she would be moving to have the Property sold if they could not reach some agreement. (UMF 11.) Defendants never responded to this communication. (*Ibid.*)

A notice of lis pendens was filed on December 17, 2025. (UMF 12.)

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).)

Once the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*) The plaintiff then has the burden of demonstrating that triable issues of material fact exist. (*Ibid.*)

Even though the instant MSJ is unopposed, the Court cannot grant summary judgment unless Defendant meets its initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) The scope of the defendant’s initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

Analysis

“A co-owner of property has an absolute right to partition unless barred by a valid waiver.” (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) “[T]he right of partition may be waived by contact, either express or implied.” (*Ibid.*) The evidence shows that Plaintiff is a co-owner of the Property. There is no evidence that Plaintiff has waived her right to partition. As such, the Court finds

that Plaintiff has a right to partition of the Property.

“If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (Code Civ. Proc. § 872.720 (a).) The Court must determine the interests of the parties before determining the manner of partition. (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 142-43.)

The evidence shows that Plaintiff received a 1/3 interest in the Property via the 1994 Grant Deed. Her brothers Helio and Manuel Dimas also each received 1/3 interests in the Property. Manuel and Helio granted both of their interests to Helio on November 1, 2024. On that same date, Helio then granted his sole interest in the Property to himself and his wife, Susana Dimas, the Defendants in this action.

As a result of the above transfers, the Court finds that Plaintiff currently holds a 1/3 interest in the Property while Defendants Helio Dimas and Susana Dimas hold a 2/3 interest “as community property with right of survivorship.”

Once the Court has determined the interests of the parties and the right to partition, the Court may determine the manner of partition. (*Summers*, supra, 24 Cal.App.5th at 142-43.) The Court “shall order that the property be sold and the proceeds be divided among the parties in accordance with their interests in the property,” when the parties agree to such relief or the “court determines that, under the circumstances, sale and division of the proceeds would be more equitable than division of the property.” (Code Civ. Proc. § 872.820.)

Plaintiff submits that it would be impracticable to do anything other than sell the Property and distribute the proceeds to the parties. Defendants do not argue otherwise. Given the nature of this dispute and the nature of the Property, the Court finds that sale of the Property and division of the proceeds would be the most equitable result.

Conclusion

Based on the above, Plaintiff’s Motion for Summary Judgment seeking partition of the Property is **granted**. The Court finds:

- Plaintiff has a 1/3 interest in the Property and Defendants hold a 2/3 interest “as community property with right of survivorship.”
- Plaintiff has a right to partition of the Property.
- The Property shall be sold and the proceeds distributed among the parties in accordance with their respective interests in the Property.

Given the above, the Court will advance the CMC currently set for September 18, 2026, to **July 9, 2026 at 8:30a.m.** in order to move this matter forward toward the sale of the Property. The parties should be prepared to discuss next steps, including possible appointment of a referee to oversee the sale of the Property, at that CMC. (Code Civ. Proc. § 873.010 et seq.)

MOVING PARTY TO PREPARE THE ORDER AFTER HEARING.

5. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING IN RE: JOINDER TO DEF VITNER HOMEOWNER'S ASSOCIATION, INC. AND ASAP
COLLECTION SERVICES MOTION FOR PROTECTIVE ORDER TO STAY ALL DISCOVERY UNTIL 30 DAYS
AFTER RESOLUTION OF DEMURRER
FILED BY: NEW PIPES INC
TENTATIVE RULING:

Defendants The Vintner Homeowners' Association and A.S.A.P. Collection Service LLC filed a motion for protective order to stay all discovery (the "MPO") on December 5, 2025. The motion was later joined by defendant New Pipes, Inc. (collectively, "Defendants") on December 15, 2025. The motion was set for hearing on June 29, 2026.

Background

The MPO sought to stay all discovery until thirty days after the resolution of the Defendants' previously filed demurrer. See MPO filed December 5, 2025, p. 2. The motion was joined by the additional defendant on December 15, 2025. See Joinder re Motion for Protective Order filed December 15, 2025 ("Joinder"). The proofs of service attached to the MPO and Joinder reflect service on plaintiff Praveen Gupta ("Plaintiff"). See Proof of Service dated December 5, 2025 as part of MPO filed December 5, 2025, pp. 3-4; Proof of Service dated December 15, 2025 as part of Joinder filed December 15, 2025. Plaintiff filed an opposition to the MPO on June 15, 2026 arguing the matter was moot given the filing of the second amended complaint and requesting sanctions. See Notice re Opposition to MPO filed June 15, 2026 ("Opposition to MPO"), pp. 1-2.

On June 22, 2026, Defendants filed a notice to withdraw the MPO and Joinder. See Notice re Withdrawal of MPO filed June 22, 2026 ("Notice re MPO Withdrawal"); Request for Judicial Notice re Reply and Notice of Withdrawal of Joinder filed June 22, 2026 ("Notice re Joinder Withdrawal").

Analysis

The moving party has withdrawn the motion stating that the MPO was premised on the impropriety of discovery given plaintiffs lack of standing which has now been cured. See Declaration of Michael A. Walker re Reply and Notice of Withdrawal filed June 22, 2026 ("Walker Decl."), ¶12-3. As the motion has been withdrawn, the hearing set for June 29, 2026 is hereby VACATED.

Although the moving party has withdrawn the motion, there is a pending request by Plaintiff for sanctions. In light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court finds and orders as follows:

1. The Motion for Protective Order has been withdrawn.

2. The hearing set for June 29, 2026 is hereby VACATED.
3. Any and all sanctions requests are DENIED.

6. 9:00 AM CASE NUMBER: C25-02471
CASE NAME: KRANTI KAPRE VS. CLEAR RECON CORP
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CLEAR RECON CORP
TENTATIVE RULING:

Defendant Clear Recon Corp ("Defendant") filed a Demurrer on February 17, 2026 (the "Demurrer") to the First Amended Complaint ("FAC") filed by plaintiff Kranti Kapre ("Plaintiff"). The Demurrer was set for hearing on June 29, 2026.

Background

Defendant's Demurrer contends that the first, second, third, and fourth causes of action all fail to state facts sufficient to constitute a cause of action. See Demurrer, pp. 1-2. The Declaration of Service attached to the Demurrer reflects service of the Demurrer on Plaintiff. See Declaration of Service filed February 17, 2026 as part of Demurrer, p. 1.

No opposition has been filed to the Demurrer.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

First Cause of Action (BREACH OF CONTRACT)

Defendant contends that the breach of contract claim does not state a cause of action because it does not allege the agreement and does not allege plaintiff's performance. See Memorandum of Points and Authorities filed February 17, 2026 ("MPA"), p. 4. The Court agrees.

The elements of a breach of contract claim are (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff. See *Tribeca Companies, LLC v. First American Title Ins. Co.* (2015) 239 Cal.App.4th 1088, 1109. Here, Plaintiff has alleged that "Defendant breached the mortgage servicing agreement by failing to accurately apply payments and calculate interest, causing financial harm." FAC filed December 15, 2025, ¶12. Although Plaintiff has referenced an agreement, to properly plead the existence of a contract, a plaintiff must

either set forth all of its material terms or attach the written agreement as an exhibit. See *Gilmore v. Lycoming Fire Ins. Co.* (1880) 55 Cal. 123, 124; see also, *Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307 (“If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.”) As Plaintiff has not alleged at least the material terms of the contract, the pleading is insufficient. Additionally, Plaintiff has made no mention of their performance or excuse for nonperformance. See FAC, ¶¶8-12. As any factual allegations for this element are absent from the pleading, the first cause of action is insufficient for this reason as well.

The Demurrer as to this cause of action is SUSTAINED.

Second Cause of Action (VIOLATION OF RESPA/HBOR)

Defendant contends that the RESPA violation claim does not state a cause of action because they are a foreclosure trustee, and “[t]hat code section relates to duties of the mortgage servicer.” MPA, p. 4. Regarding the HBOR violation, Defendant contends that no facts are pleaded to support claims under Civil Code §§2924.11, 2924.12, 2924.17. The Court agrees as to the HBOR violation and sustains the demurrer as to the RESPA violation on different grounds.

Although Defendant contends that they are not a mortgage servicer, for the purposes of a demurrer, the facts pleaded in the complaint are taken as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. Here, Plaintiff has pleaded that the mortgage was serviced by Defendant. FAC, ¶8. As such, Defendant’s status as the mortgage servicer will be taken as true. If not true, there are other procedural mechanisms to challenge the pleaded claims, such as a motion for summary judgement.

To claim a violation of 12 C.F.R. section 1024.35^[1], “plaintiffs must allege facts to show that they gave the requisite notices and that defendants failed to properly respond.” *Aghaji v. Bank of America* (2016) 247 Cal.App.4th 1110, 1119; see 12 C.F.R. §§1024.35(a), (e). Here, Plaintiff’s pleading is insufficient, because it does not allege facts about the nature of the notice given by Plaintiff or Defendant’s failure to respond. See FAC, ¶13.

Civil Code section 2924.12 creates a cause of action for injunctive relief to enjoin material violations of sections 2924.11 and 2924.17, among others. Civil Code section 2924.11 pertains to foreclosure prevention alternatives, and Civil Code section 2924.17 pertains to the accuracy of documents relating to foreclosures. The FAC contains no allegations relating to foreclosure prevention alternatives. See FAC, ¶13. While the FAC does refer to errors generally, it does not specify if those errors are related to documents covered by Civil Code section 2924.17. See FAC, ¶13.

For these reasons, the Demurrer as to this cause of action is SUSTAINED.

Third Cause of Action (UNFAIR BUSINESS PRACTICES)

Defendant argues that the Unfair Business Practice claim does not state a cause of action because it treats Defendant as the mortgage servicer and because it relies on the previous two counts. See MPA, p. 5. The Court agrees as to the latter.

As previously discussed, for the purposes of this demurrer, Plaintiff’s allegation that Defendant serviced the loan is taken as true.

The allegation appears to rely solely on the unlawful prong^[2] of Business & Professions Code section 17200. The FAC references the misapplication of payments and failure to provide accurate records

which would presumably fall under the breach of contract and statutory violations alleged in the first and second causes of action. FAC, ¶¶12-14. However, as these previous causes of action have not been sufficiently plead, this cause of action does not sufficiently allege an unlawful practice.

The Demurrer as to this cause of action is SUSTAINED.

Fourth Cause of Action (INJUNCTIVE RELIEF/ TEMPORARY RESTRAINING ORDER)

Defendant contends that this cause of action does not state a cause of action because neither injunctive relief nor a temporary restraining order are standalone causes of action.

Although the fourth cause of action is labeled “Injunctive Relief / Temporary Restraining Order” it includes a request for an accounting which is a cause of action. This “requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting.” *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179. Here, the Plaintiff has not plead facts that indicate the accounts are so complicated that other legal remedies are insufficient. FAC, ¶¶18-15; See *Civic Western Corp. v. Zila Industries Inc.* (1977) 66 Cal.App.3d 1, 14.

For this reason, the Demurrer as to this cause of action is SUSTAINED.

Disposition

The Court finds and orders as follows:

1. The Demurrer is SUSTAINED.
2. Leave to amend is GRANTED.
3. Moving party to submit proposed form of order.

^[1] Chapter X of Title 12 of the Code of Federal Regulations (CFR) includes section 1024.35 which imposes certain requirements and procedures relating to the resolution of asserted errors by a borrower regarding their mortgage loan account.

^[2] The statutory language of section 17200 establishes three distinct prongs of unfair competition; those that are unlawful, unfair, or fraudulent. See *Cal-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.

7. 9:00 AM CASE NUMBER: C25-03262
CASE NAME: JERRY BURNS, SR. VS. CFI GROUP LLC
***HEARING ON MOTION IN RE: LEAVE TO FILE THIRD AMENDED COMPLAINT**
FILED BY: BURNS, JERRY T, SR.
TENTATIVE RULING:

The unopposed motion is GRANTED. The moving party to prepare the order.

8. 9:00 AM CASE NUMBER: C25-03390
CASE NAME: CAROLINA DE ANDA VS. COUNTY OF CONTRA COSTA,
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS
FILED BY: COUNTY OF CONTRA COSTA,
TENTATIVE RULING:

Contra Costa County ("County") moves for judgment on the pleadings pursuant to Code of Civil Procedure section 438 with respect to the complaint filed by plaintiff, Carolina De Anda. The motion is **GRANTED**. Plaintiff has leave to amend as to the ninth through eleventh causes of action. As to the other causes of action, the motion is granted without leave to amend, as discussed below. If plaintiff contests this tentative ruling, counsel shall appear at the hearing prepared to discuss specific facts that she would add to an amended pleading that would change the results herein. Any amended complaint shall be filed and served on or before July 9, 2026.

I. Background

Plaintiff began working for the County on October 17, 2023 at A3 Miles Hall Crisis Center. (Complaint, ¶18.) Upon beginning employment, plaintiff informed the program manager, Debbie Thomas, that she had ADHD and anxiety. (*Ibid.*) Several months later, in May 2024, plaintiff received a crisis call and, upon receiving an address from the caller about where to go, she conveyed to the field team. (*Id.* at ¶19.) Later that day, Thomas accused plaintiff of providing the wrong address and jeopardizing the field team's safety, questioning plaintiff's fitness for her position due to her mental health disability and suggesting plaintiff find another position. (*Ibid.*)

Soon thereafter, plaintiff sought "accommodation" for her mental health disability via email to HR. (Complaint, ¶20.) In response, plaintiff received an FMLA form, but she clarified that what she needed was not time off, but an "accommodation for her disability." (*Ibid.*) Plaintiff was requested to provide a doctor's note. (*Ibid.*) When plaintiff's psychiatrist asked for more information regarding specific job duties and performance concerns, plaintiff told Thomas about the need, but because Thomas was out on a three-week vacation, the request could not be immediately met. (*Id.* at ¶21.) When Thomas returned, plaintiff met with her to request the information needed by the doctor, but Thomas said that specific feedback could not be given regarding plaintiff's performance. (*Id.* at ¶22.)

Around May 31, 2024, plaintiff's work partner was physically assaulted by a client during a field visit. (Complaint, at ¶23.) While Thomas assisted the work partner and debriefed the incident with her, she declined to meet with plaintiff, telling plaintiff she was too tired. (*Ibid.*)

On or about June 2nd, per Thomas's instructions, plaintiff was removed from crisis phone calls and was not allowed to go into the field for client interactions. (Complaint, ¶24.) A couple of weeks later, on June 18th, plaintiff requested clarity regarding her performance in order to further her disability accommodation request. (*Id.* at ¶25.) Plaintiff also complained about the lack of feedback, which inhibited her ability to obtain a doctor's note for accommodations, but Thomas did not respond to these concerns. (*Ibid.*)

Approximately one month later, on July 2nd, plaintiff again requested information to further her request for accommodations, and Thomas responded by saying there were concerns about plaintiff's work performance, without giving specifics. (Complaint, ¶26.) Plaintiff asked for clarification, and Thomas said they could talk about it later, but instead, four hours later, Thomas

terminated Plaintiff's employment. (*Ibid.*)

In addition to this narrative, plaintiff alleges wage and hour violations including missed meal breaks resulting from her crisis-response duties, as well as unpaid wages. (Complaint, ¶¶28-29.) She also alleges "various acts of unlawful and unfair business practices as defined in the Unfair Competition Law, Business and Professions Code §§ 17200 et seq."

Plaintiff's complaint was filed on November 18, 2025. Plaintiff alleges 13 causes of action:

1. Failure to Pay Overtime Wages (Labor Code §§ 510, 1194, 1198) (C/A 1)
2. Failure to Provide Meal Periods (Labor Code §§ 226.7, 512) (C/A 2)
3. Failure to Pay All Wages Due Upon Termination (Labor Code §§ 201-203) (C/A 3)
4. Failure to Provide Accurate Wage Statements (Labor Code § 226) (C/A 4)
5. Retaliation in Violation of FEHA (Gov. Code § 12940(h)) (C/A 5)
6. Unfair Business Practices (Bus. & Prof. Code § 17200 et seq.) (C/A 6)
7. Discrimination Under FEHA (Gov. Code § 12940(a)) (C/A 7)
8. Hostile Work Environment Under FEHA (Gov. Code § 12940(j)) (C/A 8)
9. Failure to Accommodate Under FEHA (Gov. Code § 12940(m)) (C/A 9)
10. Failure to Engage in the Interactive Process Under FEHA (Gov. Code § 12940(n)) (C/A 10)
11. Interference with Accommodations Under FEHA (Gov. Code § 12940) (C/A 11)
12. Wrongful Termination Under FEHA (Gov. Code § 12940(a)) (C/A 12)
13. Failure to Prevent Discrimination / Harassment / Retaliation (Gov. Code § 12940(k)) (C/A 13)

The County answered on December 31, 2025 by way of a general denial with 32 affirmative defenses. The County then filed this motion on February 17, 2026 after efforts to meet and confer with plaintiff's counsel (see Declaration of Sean M. Rodriguez in Support of Motion), as required by statute.

Plaintiff opposes the motion.

II. Standard

Code of Civil Procedure, § 438 (c)(1)(B)(ii) allows the Court to grant a motion for judgment on the pleadings in favor of a defendant if the complaint fails to state facts sufficient to constitute a cause of action against that defendant. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Like on demurrer, when considering a motion for judgment on the pleadings, the Court must accept as true all facts alleged in the complaint. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1151.) Further, leave to amend is routinely granted where a defect can reasonably be cured by amendment. (*Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989.)

III. Request for Judicial Notice

The County requests judicial notice of the following five documents:

Exhibit A: Plaintiff's Appeal to the County Merit Board, July 13, 2024

Exhibit B: County's Response to Plaintiff's Appeal, Aug. 20, 2024

Exhibit C: County Merit Board Notice of Decision, Sept. 6, 2024

Exhibit D: County Personnel Management Regulations (excerpts)

Exhibit E: Declaration of Stacey M. Boyd Confirming Absence of Government Claim

The unopposed request is **granted**.

IV. Discussion

A. Wage and Hour Claims (Causes of Action 1-4)

The County argues that the wage claims fail because it is a public entity. The County cites authority for this position, much of which refers to statutory interpretation of the very code sections relied upon by plaintiff. The Court has reviewed these cases and others which state similar principles with respect to the wage claims not being applicable to public entities. (See *California Correctional Peace Officers' Assn. v. State of California* (2010) 188 Cal.App.4th 646, 652-653; see also *Curcini v. County of Alameda* (2008) 164 Cal.App.4th 629, 643-645.)

In response, “[p]laintiff disagrees and maintains that her claims are adequately pleaded.” (Opposition, 16:7.) She requests leave to amend, but does not cite any authority to the contrary or suggest any facts that would defeat the general principle that these claims are inappropriate against the County. Instead, she simply states her FEHA causes of action “remain viable.” (Opposition, 16:9-13.)

The motion is granted without leave to amend as to the first through fourth causes of action.

B. UCL Claim (Cause of Action 6)

The County further argues it is not subject to liability under the Unfair Competition Law (Bus. & Prof. Code § 17200 *et seq.*) and cites *People for Ethical Treatment of Animals, Inc. v. California Milk Producers Advisory Bd.* (2005) 125 Cal.App.4th 871, 875, wherein the court held that “public entities [...] are not “persons” who are subject to suit under the UCL.” Plaintiff’s opposition takes the position that she has a factually distinguishable cause of action and could amend if necessary, but there appears to be no basis for ignoring this binding rule here and plaintiff provides no specific facts she would add if allowed. The County is a public entity that would not be considered a “person” under the statutory definition.

Accordingly, the motion is granted with respect to this cause of action without leave to amend.

C. FEHA Claims (Causes of Action 5, 7-13)

1. Exhaustion

The County raises plaintiff’s failure to exhaust administrative remedies. FEHA requires that an employee file a charge with the CRD that sets forth the particulars of any FEHA violations, prior to filing a lawsuit. Exhaustion in the CRD is mandatory and jurisdictional with respect to FEHA claims and thus an employee pursuing FEHA claims in court must have first filed an administrative complaint and obtained a right-to-sue letter from the agency. (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1002-1003, citations omitted.) Claims in the employee’s civil complaint that fall outside the scope of the DFEH/CRD complaint are barred. (*Ibid.*)

Plaintiff’s opposition argues that she *did* timely file a complaint with the U.S. Equal Employment Opportunity Commission and the California Civil Rights Department, formerly known as

the Department of Fair Employment and Housing (DFEH). She thereafter received a “Right-to-Sue” letter from each and commenced this action. These factual contentions are *not* pleaded in the complaint. Because exhaustion has not been pleaded, the Court finds plaintiff has failed to state her causes of action. However, these arguments do support the propriety of allowing amendment.

The motion is granted as to the fifth and seventh through thirteenth causes of action. Because plaintiff appears to have exhausted under FEHA, she has leave to amend counts 9-11.

As for counts 5 (retaliation), 7 (discrimination), 8 (hostile work environment), 12 (wrongful termination), and 13 (failure to prevent discrimination /harassment/ retaliation), they are further barred by *Johnson v. City of Loma Linda*, as discussed below, and amendment would be futile.

2. *Johnson v. City of Loma Linda and Merit Board Decision (Counts 5, 7, 8, 12, and 13)*

The County relies upon *Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61 to argue that plaintiff’s FEHA claims are barred based on the adverse outcome of her administrative remedy. Specifically, on September 6, 2024, the County’s Merit Board notified plaintiff in writing that her appeal was denied. Instead of seeking judicial review, she waited more than a year and brought the complaint in this action, which does not even mention the Merit Board decision.

In *Johnson*, the California Supreme Court held that a personnel board's findings were binding with respect to plaintiff’s FEHA claims. Under the doctrine of exhaustion of judicial remedies, unless a party to a quasi-judicial administrative agency proceeding challenges the adverse findings made in that proceeding, by means of a mandate action in superior court, those findings are binding in later civil actions. (*Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61, 71.) The doctrine applies to FEHA claims brought by public employees. (*Ibid.*) The court stated as follows: “We conclude that when, as here, a public employee pursues administrative civil service remedies, receives an adverse finding, and fails to have the finding set aside through judicial review procedures, the adverse finding is binding on discrimination claims under the FEHA.” (*Johnson, supra*, 24 Cal.4th at 76.)

Plaintiff argues the County attempts to portray the holding too broadly and it would not, in fact, apply to her claims. She argues she did exhaust under FEHA, and that the Merit Board decision does not have preclusive effect here, at least in part because the standard for “issue preclusion” has not been met. But, as pointed out in the reply, collateral estoppel is not what the County is asserting. In fact, the majority opinion in *Johnson* declined to rely on the collateral estoppel effect of a final administrative finding, a position Justice Werdegarr stated she would have favored. (*Johnson, supra*, 24 Cal.4th at 78, conc. opn. of Werdegarr, J.)

Instead, the County correctly asserts the remedy for a plaintiff questioning the propriety of an administrative decision by a public entity is to seek a writ of mandamus. (See, Code Civ. Proc., §§ 1085, 1094.5.)

The motion is granted with respect to counts 5, 7, 8, 12, and 13. Because plaintiff does not assert any additional facts that would create a valid cause of action here, no leave to amend is warranted.

3. *Failure to Accommodate Under FEHA (Gov. Code § 12940(m)) (C/A 9) and Failure to Engage in the Interactive Process Under FEHA (Gov. Code § 12940(n)) (C/A 10)*

The County challenges the ninth and tenth causes of action because plaintiff fails to state the required elements. The elements of a failure to accommodate claim are (1) the plaintiff has a

disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff's disability. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010.) With respect to failure to engage, a plaintiff has to additionally allege that she requested a reasonable accommodation so that she could perform the essential job requirements and defendant failed to participate in a timely, good faith interactive process. (*Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 54.)

Plaintiff argues the County “misapplies the pleading standard.” The Court agrees to some extent. While there are some inferences that could be drawn from the allegations, these border on legal conclusions. Plaintiff must do better to meet the factual pleading requirements, including alleging that she was able to perform essential functions of her position, and either the reasonable accommodation to which she was entitled or that she was willing to participate in an interactive process to determine whether a reasonable accommodation could be made, or both.

The motion is granted with respect to the ninth and tenth causes of action, with leave to amend.

4. Interference with Accommodations Under FEHA (Gov. Code § 12940) (C/A 11)

The County challenges this cause of action on the basis that it simply duplicates the cause of action for failure to accommodate. Plaintiff correctly responds that, assuming these claims overlap, dismissal is not warranted at the pleading stage. Still, based on the lack of sufficient allegations with respect to the tenth cause of action, this claim also fails. The motion is granted with respect to the eleventh cause of action, with leave to amend.

D. Contra Costa Health Services as a Defendant

The County seeks an order “dismissing” Contra Costa Health Services, which, according to the motion, does not exist as a separate entity. The plaintiff opposes such “dismissal.” The distinction between the actual moving defendant and the imaginary one that it seeks to dismiss is likely one without a difference. Since the complaint currently fails to state a cause of action, the Court declines to grant the motion on these grounds, in support of which the County provides no evidence (just legal commentary not binding on the particular entities at issue here), but nonetheless notes that if the County succeeds in defeating plaintiff’s complaint, any imagined or subsidiary entity (including Contra Costa Health Services) would be entitled to the same result.

9. 9:00 AM CASE NUMBER: C25-03841
CASE NAME: TERESA BANKS VS. 420 MEDFORD REO, LLC
***HEARING ON MOTION IN RE: TRANSFER OF VENUE**
FILED BY: 420 MEDFORD REO, LLC
TENTATIVE RULING:

Defendant 420 Medford REO, LLC (“Defendant”) filed a motion to transfer venue on February 13, 2026 (the “Motion”). The Motion was set for hearing on June 29, 2026.

Background

Defendant filed the Motion to transfer the action to Alameda County Superior Court. See Motion filed February 13, 2026, p. 1. The Proof of Service attached to the Motion and dated February 13, 2026

reflects service on the plaintiff. The Motion was unopposed.

On June 24, 2026, plaintiff Teresa Banks ("Plaintiff") notified the Court that the case was removed to Federal Court. See Notice re Removal filed June 24, 2026. The Certification of Service of Removal to Federal Court dated June 22, 2026 filed as part of the Notice re Removal reflects service on Defendant.

Analysis

Given the above the Court finds as follows:

- 1) The case has been removed to Federal Court.

Disposition

The Court hereby finds and orders as follows:

- 1) The matter is ordered OFF CALENDAR and the hearing set for June 29, 2026 is hereby VACATED.

10. 9:00 AM CASE NUMBER: C26-00017
CASE NAME: ALBERTO DUARTE VS. MICHELLE KOSINSKI
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

Lillian Sedaghat and Natalie Lozovsky of the Sedaghat Law Group ("Counsel") filed a Motion to be Relieved as Counsel on February 18, 2026 (the "Motion to be Relieved as Counsel"). The matter was set for hearing on June 29, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Alberto Duarte ("Plaintiff").

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship. See Declaration filed February 18, 2026, ¶2. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to resubmit an updated order after hearing (MC-053), including the current next scheduled hearing in Paragraph 7 as well as confirming the client's last known address and telephone number at Paragraph 6.

11. 9:00 AM CASE NUMBER: C26-00187
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
***HEARING ON MOTION IN RE: SUBSTITUTED SERVICE BY EMAIL**
FILED BY:

TENTATIVE RULING:

On February 19, 2026, plaintiff Sebrion Mchenry-Stewart ("Plaintiff") filed a motion for leave to serve defendants Jesse Gillespie and Regional Protection Agency Services Inc. ("Defendants") by email (the "Motion for Leave to Serve by Email"). The Motion for Leave to Serve by Email was set for hearing on June 29, 2026.

Background

Plaintiff filed this action on January 20, 2026. The Petition seeks monetary damage and enforcement of a Decision of the Labor Commissioner of the State of California in Plaintiff's favor dated December 18, 2025.

Analysis

Plaintiff references Code of Civil Procedure section 415.50(c). That section provides "Service of a summons in this manner is deemed complete as provided in Section 6064 of the Government Code" and relates to service via publication when permitted. See Code Civ. Proc. § 415.50(c).

This is not a request for leave to serve via publication.

The Court does not find any basis to order service of process on either of the Defendants by email.

Lastly, it is not clear to the Court why this suit is being pursued if the Labor Commissioner may initiate the appropriate process to confirm a court judgment based on the Decision.

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to Serve by Email is DENIED.
2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA

TENTATIVE RULING:

Continued to August 10, 2026, 9:00 am, in Department 34, pursuant to the stipulation of the parties and the Court's Order signed June 17, 2026.

13. 9:00 AM CASE NUMBER: MSC20-01624

CASE NAME: RAFAY VS FCA US, LLC

*HEARING ON MOTION IN RE:

FILED BY:

TENTATIVE RULING:

Plaintiff Rayan Rafay ("Plaintiff") filed a Motion for Attorneys' Fees, Costs and Expenses on December 8, 2025 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$50,451.00 in attorneys' fees, with a 1.35 multiplier of \$17,657.85, totaling \$68,108.85, plus \$4,603.30 in costs, not inclusive of any further fees incurred on this motion, as against defendant FCA US, LLC ("Defendant"). The Motion for Fees and Costs was set for hearing on April 27, 2026. The Court *sua sponte* continued the matter from April 27, 2026 to June 15, 2026 and, later, to June 29, 2026. The motion is opposed.

Background

This matter was resolved by way of a settlement upon Plaintiff's acceptance of Defendant's 998 offer (the "Settlement Agreement"). See Declaration of Dhara Chandy filed December 8, 2025 ("Chandy Decl.") ¶¶63-64 and **Exhibit 2** thereto. Among the terms was a settlement payment of \$118,974.60 payable to Plaintiff by Defendant. Settlement Agreement, ¶1, Chandy Decl., **Exhibit 2**. The agreement also includes a provision that Plaintiff is the prevailing parties and provides for Plaintiff's recovery of "reasonable costs, expenses, and attorneys' fees" in connection with the action:

3. If the parties are unable to resolve attorney's fees and costs, Plaintiff may seek reasonable costs, expenses and attorneys' fees pursuant to a properly noticed motion pursuant to Civil Code Section 1794(d). FCA agrees that Plaintiff is the prevailing party for the purposes of a fee motion, as defined by Civil Code section 1032. If a motion is needed, this shall not be construed as a waiver of FCA's rights to assert arguments in opposition thereto based on the reasonableness of the fees, costs or expenses sought.

Settlement Agreement, ¶13, Chandy Decl., **Exhibit 2**.

The Motion for Fees and Costs is supported by the declaration of Plaintiff's attorneys summarizing the conduct of the litigation and outcome achieved. See Chandy Decl., ¶13 *et seq.*; see also Declaration of Payam Shahian filed December 8, 2025 ("Shahian Decl.") ¶13 *et seq.*

Counsel Shahian's declaration describes the billing attorneys' and paralegals' background and professional experience and the reasonableness of their billing rates. See Shahian Decl., ¶17 *et seq.* The declarations describe the work done, the results achieved and proffers supporting billing records. Chandy Decl., ¶¶17-67; Shahian Decl., **Exhibit 1**.

The total "base" amount billed was \$50,451.00. Shahian Decl., ¶29 and **Exhibit 1** thereto. Plaintiff seeks a "lodestar multiplier" of 1.35 in light of, among other things, the contingency representation, the conduct of the litigation and the outcome achieved. See *id.* at ¶22 *et seq.*; see also Memorandum of Points and Authorities (MPA), Motion for Fees and Costs, p.1 *et seq.* The motion seeks an additional \$2,500 for estimated further attorney's fees in connection with this motion. *Id.* at ¶47.

Plaintiffs' motion is further supported by a Request for Judicial Notice ("Plaintiff's RJN") referencing orders in multiple other cases in state and federal court, including what appear to be proffered quotations from several cases included in the body of Plaintiff's RJN. See Plaintiff's RJN filed December 8, 2025. The Request for Judicial Notice is DENIED. The RJN fails to attach true and correct

copies of any of the matters as to which Plaintiff's requests judicial notice. Nor is the Court inclined to take judicial notice of purported quotations as recited in the requesting party's pleading without the proffering of a true and correct copy of the subject source document.

Defendant filed an Opposition on April 14, 2026, along with various opposition documents, including objections ("Defendant's Objections to Chandy Decl." and "Defendant's Objections to Shahian Decl.") and an opposition declaration ("Cronin Decl.").

Plaintiffs filed a Rely on June 8, 2026, along with a supplemental Declaration of Emily R. Rader ("Rader Decl.") and objections to Counsel Cronin's declaration ("Plaintiff's Objections to Evidence") on the same date. That reply declaration includes a breakdown of the billings incurred in responding to the opposition. Rader Decl., ¶16 *et seq.* Those fees total \$4,590.00. *Id.* (10.0 hours at \$360/hr. plus 2.0 hours at \$495/hr.).

Defendant's Objections to Chandy Decl.

Objection No. 1: OVERRULED.

Objection No. 2: OVERRULED.

Objection No. 3: OVERRULED.

Defendant's Objections to Shahian Decl.

Objection No. 1: OVERRULED.

Objection No. 2: OVERRULED.

Objection No. 3: OVERRULED.

Objection No. 4: OVERRULED.

Objection No. 5: OVERRULED.

Objection No. 6: OVERRULED.

Objection No. 7: OVERRULED.

Objection No. 8: OVERRULED.

Objection No. 9: OVERRULED.

Objection No. 10: OVERRULED.

Objection No. 11: OVERRULED.

Objection No. 12: OVERRULED.

Objection No. 13: OVERRULED.

Objection No. 14: OVERRULED.

Objection No. 15: SUSTAINED. The referenced paragraph is stricken and has not been considered by the Court.

Objection No. 16: OVERRULED.

Objection No. 17: SUSTAINED. The referenced paragraph is stricken and has not been considered by the Court.

Objection No. 18: OVERRULED.

Objection No. 19: OVERRULED.

Objection No. 20: OVERRULED.

Objection No. 21: SUSTAINED. The referenced paragraph is stricken and has not been considered by the Court.

Objection No. 22: OVERRULED.

Objection No. 23: OVERRULED.

Plaintiff's Objections to Evidence

Objection No. 1: OVERRULED.

Objection No. 2: OVERRULED.

Objection No. 3: OVERRULED.

Objection No. 4: OVERRULED.

Objection No. 5: OVERRULED.

Analysis

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at 1096.

The Court has reviewed the stated hours and the nature of the legal work reflected in the proffered billing entries, considering, among other things, the work described as well as the particular information provided by all parties as to the nature and necessity of such work. The Court has considered the hourly rates by timekeeper for such work and the number of hours reasonably expended by such timekeepers. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above.

The Court finds the hours billed and the total base fees of \$50,451.00 (not inclusive of the \$4,000 original estimate for work on any reply) to be reasonable and necessary to the conduct of the litigation, with the exception of the following items which the Court, in the exercise of its discretion, does not find were reasonable as billed:

June 23, 2021 (8.0 hrs. - \$3,960.00). Time for drafting discovery motion. Reduced to 3.0 hrs. at \$495.00/hr. for a total of \$1,485.00.

June 24, 2021 (7.1 hrs. - \$3,514.50). Time for drafting discovery motion. Reduced to 3.0 hrs. at \$495.00/hr. for a total of \$1,485.00.

August 9, 2021 (5.0 hrs. - \$2,175.00). Time for drafting “motion for relief” and related work. Reduced to 2.5 hrs. at \$435.00/hr. for a total of \$1,087.50.

August 9, 2021 (3.4 hrs. - \$1,479.00). Time for drafting “motion for relief” and related work. Reduced to 2.5 hrs. at \$435.00/hr. for a total of \$1,087.50.

January 11, 2022 (4.8 hrs. - \$1,968.00). Time to “finalize” ex parte application to continue trial. Reduced to 2.0 hrs. at \$410.00/hr. for a total of \$820.00.

The foregoing items totaled \$13,096.50 as billed. The reduced time awarded for these items totals \$5,965.00, resulting in a net reduction of \$7,131.50. With that reduction, the \$50,451.00 base fees becomes **\$43,319.50** (\$50,451.00 less \$7,131.50), which amount the Court finds to be reasonable and necessary to the conduct of the litigation. The Court further finds that the time incurred in connection with the reply, **\$4,590.00**, be reasonable and necessary to the conduct of the litigation. \$43,319.50 plus \$4,590.00 equals **\$47,909.50**.

The Court further finds that the proposed lodestar multiplier of 1.35 is just and appropriate in view of all of the relevant factors. \$47,909.50 times 1.35 equals **\$64,677.83**.

Defendant argues that Plaintiff waited until December 8, 2025, 637 days after the case was dismissed, to file this motion and is therefore time barred, citing Rule 3.1702(b)(1) of the California Rules of Court (CRC) and other authority.

A Notice of Settlement of Entire Case was filed on November 9, 2023. The Court has considered and rejects Defendant’s contention that the motion is untimely. Although that notice reference the anticipated filing of a request for dismissal by March 11, 2024, no such dismissal appears of record on the Court’s docket. Indeed, the Court’s records do not indicate any final disposition and certainly no judgment of dismissal was ever entered.

Costs

The Court finds that the claimed costs in the amount of **\$4,603.30** are recoverable and were necessary to the conduct of the litigation.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. Plaintiff is awarded and shall recover from Defendant attorneys’ fees in the sum of **\$64,677.83**.
3. Plaintiffs is awarded and shall recover from Defendant costs of suit in the sum of **\$4,603.30**.
4. Plaintiff to prepare the order after hearing and final form of judgment of dismissal.

14. 9:00 AM CASE NUMBER: N25-1906
CASE NAME: JONATHAN DUNCKEL VS. RUSSELL VACARRO
***HEARING ON MOTION IN RE: FEES AND COSTS**
FILED BY:
TENTATIVE RULING:

Parties to Appear.

15. 9:00 AM CASE NUMBER: N26-0265

CASE NAME: CLAIM OF:VALENTINA VILLANUEVA

*HEARING ON MINOR'S COMPROMISE

FILED BY:

TENTATIVE RULING:

PARTIES TO APPEAR.

16. 9:00 AM CASE NUMBER: N26-0466

CASE NAME: PETITION OF:CALIFORNIA CIVIL RIGHTS DEPARTMENT, AN AGENCY OF THE STATE OF CALIFORNIA

HEARING ON PETITION IN RE: PETITION FOR AN ORDER COMPELLING COMPLIANCE WITH SUBPOENA FOR INTERVIEW OF PERSON(S) MOST QUALIFIED

FILED BY: CALIFORNIA CIVIL RIGHTS DEPARTMENT, AN AGENCY OF THE STATE OF CALIFORNIA

TENTATIVE RULING:

This matter was resolved by the Court's Order entered April 28, 2026. The matter is fully dispositioned.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-00713

CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION

*HEARING ON MOTION FOR DISCOVERY PROTECTIVE ORDER TO STAY ALL DISCOVERY UNTIL 30 DAYS AFTER RESOLUTION OF THE DEMURRER

FILED BY: THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION

TENTATIVE RULING:

See Line 5 above.

18. 9:01 AM CASE NUMBER: C25-01397

CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEMAND FOR INSPECTION, COPYING, TESTING, OR SAMPLING OF DOCUMENTS, SET ONE

FILED BY: RODRIGUEZ, ROBERT D.

TENTATIVE RULING:

Parties to appear to address status of assignment to Discovery Facilitator.

19. 9:01 AM CASE NUMBER: C25-01690

CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH

*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS TO THIRD PARTY S.G. BANKS, INC.

FILED BY: CITY OF ANTIOCH

TENTATIVE RULING:

Defendant City of Antioch (“Defendant”) filed a motion to compel compliance with deposition subpoena for production of business records (the “Motion to Compel”) to third party S. G. Banks, Inc. (the “Third Party”) on February 6, 2026. The motion was set for hearing on June 29, 2026.

Background

The deposition subpoena was served on the Third Party on November 10, 2025. See Declaration of Harry J. Moren re Motion to Compel Compliance filed February 6, 2026, ¶3 and **Exhibit 2** thereto (including Proof of Service dated November 10, 2025). No responses to the subpoena were received by the filing of the Motion to Compel. *Id.* at ¶4.

Defendant was unable to serve the Third Party and filed an *ex parte* application for service by delivery to the Secretary of State. See Declaration of Harry J. Moren re Ex Parte Application filed May 19, 2026, ¶21-23 and **Exhibits 5, 6, and 7** thereto; Ex Parte Application re Authorization of Service filed May 19, 2026. The application was approved by the Court on May 22, 2026. See Order re Authorizing Service filed May 26, 2026.

Per Defendant, the Secretary of State refused to comply with this order because such service was only authorized for service of process and not as to service for subsequent papers. See Reply re Motion to Compel Compliance filed June 22, 2026 (the “Reply”), ¶3; Declaration of Harry J. Moren re Reply filed June 22, 2026, ¶5 and **Exhibit 6** thereto (including letter from the California Secretary of State dated June 2, 2026).

In the Reply, Defendant requests the hearing on the Motion to Compel be held in abeyance pending service. *Id.* at ¶6.

The Motion to Compel is unopposed.

Analysis

The Court in its discretion will continue the hearing to September 21, 2026, 9:00 am, in Department 34.

Disposition

The Court finds and orders as follows:

1. The hearing on the Motion to Compel is hereby CONTINUED to September 21, 2026, 9:00 am, in Department 34.
2. Defendant to timely serve this motion before the next hearing or else advise the Court if it is withdrawn.
3. Moving party to prepare the order after hearing.

Courtroom Clerk's Session

20. 1:30 PM CASE NUMBER: N25-0829
CASE NAME: DUONG ESTUARY COVE, LLC VS. CONTRA COSTA COUNTY
HEARING IN RE: PETITION FOR WRIT OF MANDATE
FILED BY:

TENTATIVE RULING:

The Court rules on Petitioner Duong Estuary Cove, LLC's petition for writ of mandate against Contra Costa County as follows:

Background

Petitioner plans to build a housing project with 271 dwelling units in an unincorporated portion of Oakley.

Petitioner submitted a preliminary application on September 25, 2023. (AR 624.) The application stated that it would have 209 market rate units and 62 moderate income units. (AR 626.) It also stated that it was intended to be a builder's remedy project, noting that it would provide 20 percent of its units for lower income households. (AR 633.)

Respondent sent a notice of incomplete application on October 24, 2023, identifying certain information needed for the preliminary application. (AR 695.) Petitioner submitted updated information on October 26, 2023. (AR 742.) Respondent sent a notice of complete preliminary application on November 2, 2023, and attached agency comments on the project. (AR 752.)

The County housing element was not in substantial compliance with the State Housing Element Law for most of 2023. The County adopted a new general plan housing element on December 12, 2023. (Respondent's RJN C and Petitioner's RJN A-3.) The state found that the County was in substantial compliance with the State Housing Element Law on January 22, 2024. (Respondent's RJN D and Petitioner's RJN A-4.)

Petitioner submitted a full application for a subdivision and development plan on April 19, 2024. (AR 988.) Petitioner also responded to the agency comments provided in October 2023. (AR 989.)

Respondent issued a notice of incomplete application on May 17, 2024, listing eleven items that were incomplete. (AR 1595.) The notice also attached additional comments, including an email stating that the Builder's Remedy did not apply because there were not enough below market-rate units. (AR 1631.)

Petitioner resubmitted the planning application, with additional responses on August 22, 2024. (AR 1663, 1665.) In Petitioner's resubmittal letter and accompanying letter by their attorney, Petitioner took the position that there was only one permitted checklist and that the County was requesting items beyond the checklist. Petitioner also took the position that it was providing the

necessary 20% lower-income units to use the Builder's Remedy. (AR 1665-1670, 2152-2157.)

Respondents issued a second notice of incomplete application on September 20, 2024. (AR 2158.) Respondent explained that there were multiple applicable checklists and identified the incomplete areas of the application. (AR 2159, 2161.) Respondent stated its position that the Builder's Remedy did not apply here.

Petitioner submitted a response to this letter on November 12, 2024. (AR 2225.) The County responded with a third notice of incomplete application on December 11, 2024. (AR 2194.) Petitioner sent a letter appealing the County's third incompleteness determination on December 23, 2024. (AR 2236.)

The County's Planning Commission heard the appeal on February 12, 2025. (AR 591-623, 2244.) The Planning Commission denied the appeal. (AR 1.) Petitioner sent a letter appealing this denial on February 21, 2025. (AR 2246.) On March 7, 2025, the County responded that the Planning Commission's decision was final and was not appealable to the Board of Supervisors. (AR 2267.) This case followed.

Petitioner filed a petition for writ of mandate under both Code of Civil Procedure sections 1085 and 1094.5. The petition was filed against Contra Costa County, Contra Costa County Board of Supervisors, Contra Costa County Planning Commission and the Contra Costa County Department of Conservation and Development (together Respondent)

The petition includes the following causes of action: (1) administrative writ claim for violation of the HAA for not following the Builder's Remedy rule; (2) traditional writ claim for the failure to hold an appeal hearing before the Board of Supervisors within the required 60-day time period based upon Government Code section 65943(c); (3) traditional writ claim under the PSA for finding the application incomplete based upon items not included in the main checklist; (4) an administrative writ claim under the PSA for finding the application incomplete based upon items not included in the main checklist; (5) a traditional writ claim under the HAA for failure to follow the timelines for a completeness determination; (6) administrative writ claim under the HAA for failure to follow the timelines for a completeness determination; (7) a traditional writ claim for violation of the Subdivision Map Act, including Respondent's decision that the Builder's Remedy did not apply and (8) a claim for declaratory relief.

Standard of Review

A traditional "writ of mandate will issue to 'compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station' (Code Civ. Proc., § 1085, subd. (a)), 'where there is not a plain, speedy, and adequate remedy, in the ordinary course of law' (Code Civ. Proc., § 1086)." (*Ochoa v. Anaheim City School Dist.* (2017) 11 Cal.App.5th 209, 223.) "What is required to obtain writ relief is a showing by a petitioner of '(1) A clear, present and usually ministerial duty on the part of the respondent ... ; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty ...'" [Citation.] (*Ochoa, supra*, 11 Cal.App.5th at 223.)

For a traditional writ of mandate under section 1085, "[t]he trial court reviews the challenged

administrative action to determine whether it was arbitrary, capricious, or entirely lacking in evidentiary support, or whether the agency failed to follow the procedure and give the notices the law requires. [Citation.]” (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 484-485.)

For an administrative writ under section 1094.5, the standard of review is “ ‘ “whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.” ... (Code Civ. Proc., § 1094.5, subd. (c).)’ [Citation.]” (*Schmid, supra*, 60 Cal.App.5th at 483-484.)

“To the extent the administrative determination rests on the agency’s interpretation or application of an ordinance, it presents a question of law which we review independently. [Citation.]” (*Colony Cove Properties, LLC v. City of Carson* (2013) 220 Cal.App.4th 840, 866.) “[A]n agency’s view of the meaning and scope of its own ordinance is entitled to great weight unless it is clearly erroneous or unauthorized. [Citations.]” (*Friends of Davis v. City of Davis* (2000) 83 Cal.App.4th 1004, 1015.)

Legal Background

“Each city and county in California must have a general plan for its physical development (Gov. Code, § 65300) and local land use decisions, including zoning ordinances, must be consistent with it. (*Id.*, § 65860, subd. (a); *Fonseca v. City of Gilroy* (2007) 148 Cal.App.4th 1174, 1182.) In turn, land use permits must be consistent with a site’s zoning. (*Land Waste Management v. Contra Costa County Bd. of Supervisors* (1990) 222 Cal.App.3d 950, 959.)” (*Save Lafayette v. City of Lafayette* (2022) 85 Cal.App.5th 842, 850.)

The Housing Accountability Act (HAA) “established limited exceptions to these general rules.” (*Ibid.*) “The HAA provides that when a proposed housing development complies with objective general plan, zoning, and subdivision standards and criteria in effect *at the time the application is deemed complete*, the local agency may disapprove the project or require lower density only if it finds the development would have specific adverse effects on public health or safety that cannot feasibly be mitigated. [Citations.]” (*Ibid.*)

The HAA includes a provision known as the Builder’s Remedy. The Builder’s Remedy allows a developer to submit a housing development plan (with certain amounts of low or moderate-income housing) that is inconsistent with the general plan and zoning requirements. The Builder’s Remedy is only available while the local agency is not compliant with the housing element. (Gov. Code §65589.5(d)(5).) In order to take advantage of the Builder’s Remedy, developers can submit a preliminary or complete application to vest the right to proceed under the Builder’s Remedy. (Gov. Code §§ 65941.1, 65943.) Once an application containing all the information set forth in Government Code section 65941.1 is submitted a project is subject only to those “ordinances, policies, and standards adopted and in effect” when the preliminary application was submitted. (Gov. Code § 65589.5(o)(1).)

The Permit Streaming Act (PSA) addresses processes for permitting housing and other

development projects. (Gov. Code § 65920 et seq.) The PSA “requires public agencies to specify up front what information an applicant for a development project must supply, and then the agency must review applications for completeness within 30 days of receiving them. (Gov. Code, §§ 65940, subd. (a)(1), 65943, subd. (a).) The PSA requires an agency to notify an applicant what information, if any, is missing, and then the process iterates if the applicant provides further information. ‘Upon receipt of any resubmittal of the application, a new 30-day period shall begin, during which the public agency shall determine the completeness of the application.’ (Gov. Code, § 65943, subd. (a).) If the agency does not determine in writing within 30 days whether an application for a development project is complete, ‘the application shall be deemed complete.’ (*Ibid.*) And whether an application is complete for purposes of the PSA is also relevant under the HAA, which incorporates by reference the PSA’s definition of a complete application. (See Gov. Code, § 65589.5, subd. (h)(5).)” (*Save Lafayette, supra*, 85 Cal.App.5th at 851.) The PSA also sets forth time limits for an agency to decide an appeal by the project applicant. (Gov. Code § 65943 (c).)

Analysis

1. HAA: Builder’s Remedy (causes of action one and six)

Petitioner challenges Respondent’s finding that the Builder’s Remedy does not apply to this project under both traditional and administrative writs. The Builder’s Remedy is found in the HAA and “[a]ny action brought to enforce the provisions of this section shall be brought pursuant to Section 1094.5 of the Code of Civil Procedure”. (Gov. Code, § 65589.5 (m)(1).) Thus, the Court reviews this argument under the administrative writ standard.

Petitioner’s preliminary application was found to be complete on November 2, 2023. (AR 752.) At that time, Respondent was out of compliance with the State Housing Element Law. Respondent came into compliance on January 22, 2024. (Respondent’s RJN D and Petitioner’s RJN A-4.) Petitioner submitted a full application for a subdivision and development plan on April 19, 2024. (AR 988.).

In order to use the Builder’s Remedy, Petitioner needs to show that the preliminary application submitted on November 2, 2023, was sufficient to trigger the Builder’s Remedy.

The Builder’s Remedy applies to housing development projects for “very low, low-, or moderate-income households, or an emergency shelter.” (Gov. Code 65589.5(d).) In 2023, “Housing for very low, low-, or moderate-income households” means that either (A) at least 20 percent of the total units shall be sold or rented to lower income households, as defined in *Section 50079.5 of the Health and Safety Code*, or (B) 100 percent of the units shall be sold or rented to persons and families of moderate income as defined in Section 50093”. (Gov. Code section 65589.5(h)(3).)

In Petitioner’s preliminary application, it stated there would be 209 market rate units and 62 moderate income units. There were no low, very low or extremely low units indicated. (AR 626.) The page before explained that Petitioner wanted to take advantage of the Builder’s Remedy. (AR 625.) There were several other references in the preliminary application to Petitioner’s intention of complying with SB 330 and using the Builder’s Remedy.

In Respondent’s notice of incomplete preliminary application and its notice of complete preliminary application, Respondent included agency comments. One such comment was an October

18, 2023 email that explained the project did not qualify as a Builder's Remedy project because the necessary amount lower-income housing was missing. (AR 720, 771.) The email notes that Petitioner needs to include twenty percent lower-income housing or one hundred percent moderate-income housing. (AR 720, 771.)

When Petitioner submitted the full application on April 19, 2024, it included responses to many of the agency comments from 2023. (AR 989-1012.) Despite commenting on other sections, Petitioner did not comment on this portion of the Builder's Remedy analysis. (AR 1006.) Farther down, Petitioner responded that it intended to qualify for the Builder's Remedy, "we intend to satisfy via [County Ordinance section] 822-4.406(d): Dual Developers, one affordable and one market rate." (AR 1007.)

On May 17, 2024, the County issued a notice of incomplete application. The notice stated that the project must comply with the County's general plan. (AR 1595.) While this section did not specifically reference the Builder's Remedy issue, requiring consistency with the general plan is not permitted where the Builder's Remedy applies. Within the attachments to the notice was a May 14, 2024, email discussing the Builder's Remedy and the lack of lower-income housing units. (AR 1631.)

On August 22, 2024, Petitioner responded to the Builder's Remedy issue, by stating that "The Project is providing an overall 23 % affordable units being the 62 duplexes. All the units will be at the "lower-income" household AMI as defined under the SB330 Builders Remedy criteria." (AR 1667, although dated August 17, the document was received by the County on August 22.) On August 28, 2024, Petitioner's attorney confirmed that the project includes "20% of the units [which] will be deed-restricted to lower income households." (AR 2152, see also AR 2155-2156.)

Respondent argues that the preliminary approval did not meet the requirements of a Builder's Remedy project. Under the PSA in order to use the regulations that existed at the time of the preliminary application, Petitioner had 180 days to submit a complete application (Gov. Code 65941.1(e)(1)) and then another 90 days to provide additional material (Gov. Code 65941.1(e)(2).)

Here, the preliminary application was found to be complete November 2, 2023. The 180 day time period expired on April 30, 2024. Respondent's notice of incomplete application was dated May 17, 2024, and the additional 90 days expired on August 15, 2024. Petitioner did not clearly state that there would be 23% lower-income housing units until after August 15, 2024.

Petitioner acknowledges that it checked the wrong box on the preliminary application, but points out that it repeatedly stated the project was a Builder's Remedy project. Thus, Petitioner argues that the Respondent knew Petitioner's project would include the necessary lower-income housing because that is what is required for a Builder's Remedy project. The Court does not find this argument persuasive.

It seems likely that Petitioner's failure to state that twenty-three percent housing will be lower-income until August 2023 was an oversight or mistake by Petitioner. Petitioner's response to the Builder's Remedy issue on April 19, 2024, suggests that it was considering the wrong issue. At the hearing before the Planning Commission, Petitioner's attorney noted that the wrong box was checked due to a scrivener's error. (AR 609.)

The Builder's Remedy applies when (1) the agency lacks a compliant Housing Element at the time the preliminary application is completed (and continuing for the time period specified in the

PSA, Gov. Code section 65941.1) and (2) the project qualifies as housing for very low, low-, or moderate-income households under §65589.5(d). But here, the project did not include the required amount of low-income housing until August 22, 2024. Respondent was in compliance with the Housing Element at that time. Thus, in order to use Respondent's history lack of compliance with the housing element, Petitioner needed to meet the time limits under the PSA. However, the 90 day response period expired on August 15, approximately 7 days before Petitioner first identified its project as a Builder's Remedy project.

The Court finds that the Builder's Remedy does not apply to this project under either a traditional or an administrative writ standard. Therefore, Petitioner's causes of action one and six are denied.

2. PSA: Checklist Requirements (causes of action three and four)

Petitioner challenges Respondent's decision to find the full application incomplete under the PSA. While brought as both a traditional and administrative writ, the challenge here is properly brought as an administrative writ. Thus, the Court's review is focused on whether there is substantial evidence to support the agency's findings of incompleteness.

Under the PSA, cities and counties must "compile one or more lists that shall specify in detail the information that will be required from any applicant for a development project." (Gov. Code § 65940.) Within 30 days, the agency must let the project application know if their application is complete. "If the application is determined to be incomplete, the lead agency shall provide the applicant with an exhaustive list of items that were not complete. That list shall be limited to those items actually required on the lead agency's submittal requirement checklist." (Gov. Code, § 65943 (a).)

Once a project is deemed complete, the agency may still review the application for substantive issues, but the agency may not request new or additional information which is not specified in section 65940 (providing a list of state mandated information). (Gov. Code § 65944(a).)

Petitioner argues that Respondent's May 17, 2024 notice of incompleteness included items on the incomplete determination that were not required by the County's checklist. Thus, Petitioner argues that the application must be deemed complete as of May 19, 2024 (30 days after the application was submitted) because there was no reason to find the application incomplete. (Gov. Code § 65943(a)).

Petitioner argues that there was only one checklist, yet the County requested information from multiple checklists. Petitioner argues that the only allowed checklist is the application submittal checklist (AR 2838, 2157.) Respondent points to the record, which shows that there was a County application webpage that included links to both the general planning application checklist and the inclusionary housing plan checklist. (AR2825-2837.) The Court finds that Respondent was permitted to include multiple checklists, and that these checklists were available from the County's website. While the inclusionary housing plan checklist was not specifically mentioned in the section on "What Documents Should Be Included?" (AR2795-96), a link to the housing plan checklist was available further down the same webpage (AR 2797). Further, the need for an inclusionary housing plan checklist was included in communications regarding the preliminary application, including in the

notice of complete preliminary application. (AR 773, 774.) Thus, under the PSA, Respondent was permitted to require information on the inclusionary housing plan checklist.

The record shows that the County updated its website to move the location of the link to the inclusionary housing checklist, along with links to other special projects by May 2024. (AR 2831-2837.) The fact that the County updated its website does not show that the prior version of the website was insufficient or failed to comply with the multiple checklists option in the PSA.

Petitioner argues that the first item was not properly included because of the Builder's Remedy and that the remaining items were not included in the checklist, including the rationale for building heights, specific parking dimensions for a public park, and clarification on the source of water supply. Further, Petitioner argues that the County engaged in a substantive review of the project, which goes beyond the scope of the completeness determination required by the PSA.

a. Substantive Review of Items

The agency provides its analysis and determination of whether the project is consistent with the "objective general plan, zoning, and subdivision standards and criteria, including design review standards" after the project application is determined to be complete. (Gov. Code § 65589.5(j).) Further, the PSA contemplates that additional information will be provided to the agency after the application is determined complete. "The agency may, in the course of processing the application, request the applicant to clarify, amplify, correct, or otherwise supplement the information required for the application." (Gov. Code § 65944(a).) The PSA also allows for additional information as required by CEQA. (Gov. Code § 65944(c).)

Petitioner argues that Respondent went beyond requiring items for a checklist and engaged in a substantive review of the application. Whereas, Respondent argues that it was entitled to ask clarifying questions and requesting additional information that was part of its checklists.

Here, the May 17 notice of incompleteness includes both reasonable requests for clarification and/or additional information and it includes substantive analysis of the project's consistency with the general plan and other applicable standards.

The first incomplete item on the list discusses that the project is not consistent with the general plan and that a general plan amendment is required. (AR 1595.) While these may be accurate statements, the general plan amendment was not included in Respondent's checklists and the finding that the project is not consistent with the land use designation is a substantive review of the project. (Of course, if the Builder's Remedy is found to apply then consistency with the general plan would not be required.)

The second incomplete item notes that the project identified Diablo Water District as its water supply, but that the County records do not identify the project site as being served by the water district. (AR 1596.) While this may be a valid concern, water supply is not an item included in the Application Submittal Checklist or the Inclusionary Housing Checklist. Further, it appears that this item included a consideration of whether Petitioner's statement regarding its water source was

accurate, as opposed to included.

The ninth incomplete item requests a reasoning for the height of some single-family residences and asks that Petitioner consider lowering the height to be consistent with development in the area. (AR 1595.) As with the other items, it may be reasonable for the County to raise concerns about the height of the buildings, but it is not an item that can be considered incomplete.

The remaining items of incompleteness do not include substantive analysis and are addressed below.

b. Estoppel

Petitioner argues that the County is estopped from denying the applications completeness because it engaged in a detailed substantive processing of the project. Petitioner points to Government Code section 65944, which allows the agency to request some supplemental and clarifying information after the completeness determination. This section, however, does not address estoppel. Further, Petitioner cites no case law to support this argument. Petitioner has not convinced the Court that estoppel applies here.

c. Incomplete Items Analysis

Item 3 requests information on the locations of trees, and the Application Submittal Checklist includes several requests for information on trees. Thus, this item was properly identified as an incomplete item.

Item 4 requests clarification as to the total acres of the property, noting that the county records show the property at 77.41 acres, but the application lists the property at 78.33 acres. It's not clear that this analysis constitutes a substantive determination. Still, the checklist does not require that the total acres for the project be consistent to the acres in the country records. While obtaining clarification on the total acres is a reasonable request, the Court finds that this was not a valid reason to find the project application incomplete.

Item 5 requests clarification on the setback information. Respondent noted that the setback information included with the plans was inconsistent and requested clarification. Respondent noted that "Sheet C1.0 states the rear yard setback for single-family detached is 15 feet. However, Sheet C3.0 indicates a 10-foot rear yard." (AR 799, 802.) The application submittal checklist requires a site plan that shows "Existing and proposed building/structures/uses clearly labeled with setbacks". Here, the Court has reviewed the sheets and finds that setback information for the single-family homes is inconsistent, listing both 10 and 15 feet. Further, the Court finds that since setback information was specifically included in the Checklist, Respondent could find the setback information was incomplete due to the internal inconsistency within the application.

As to item 6, Respondent requested details on the parking area for the public parks, which had not indicated what parking would be used for the parks. (AR 1693.) The Application Submittal Checklist requires "dimensioned parking spaces" and thus, the Court finds that the failure to address parking spaces for the park meant that the application was incomplete as to the dimensioned parking

spaces. The need for information on parking for the park was also identified in the second incomplete notice (AR 2161.)

As to item 7, Respondent requested the width between parking spaces on Street F on Sheet C3.4. (AR 1596, AR 806.) This information is required by the Checklist as either being part of the traffic circulation plan or the dimensioned parking spaces. In either event, it was permissible for Respondent to require this information for its completeness determination.

As to item 8, Respondent noted that there was confusion regarding the location of easements on the property. The Checklist requires showing as existing / proposed right-of-ways and thus, it was permissible for Respondent to require this information for its completeness determination.

As to item 10, Respondent requested additional information on the monument signs. The Checklist requires site plans and details regarding the signs. Thus, it was permissible for Respondent to require this information for its completeness determination.

As to item 11, Respondent requested additional information on who will own and maintain the parks and trail. (AR 1597-98.) Information regarding public parks, including maintenance plans, is not an item included on the checklists. Therefore, the Court finds that this was not a valid reason to find the project application incomplete.

As to item 12, Respondent noted that there were agency comments attached to the letter and requested that Petitioner review and comment on them. The attached comments from other agencies, including noting the need for an inclusionary housing plan. (AR 1631-1632). The record shows that Petitioner did not include an inclusionary housing plan, which is required by the inclusionary housing plan checklist. Thus, it was permissible for Respondent to require an inclusionary housing plan for its completeness determination

The Court finds that Respondent was entitled to identify items 3, 5, 6, 7, 8, 10 and 12 as incomplete under the PSA. The other incomplete items included in the May 17, 2024, notice violated the PSA and thus, constituted an abuse of discretion.

d. Was Petitioner Prejudiced?

The next issue before the Court is whether there is a consequence to finding an application incomplete under the PSA where some, but not all, of the finds were legally correct. Stated another way, a writ will only issue if there was a *prejudicial* abuse of discretion. Where a notice of incompleteness includes both legally permissible items and additional items that are impermissible, what is the consequence?

Petitioner argues that because the May 17, 2024 notice failed to identify any valid checklist deficiencies, it was ineffective to stop the statutory clock, citing to *Orsi v. City of Salinas* (1990) 219 Cal.App.3d 1576, 1586. *Orsi* is distinguishable as there the agency failed to timely provide a notice of incompleteness, which by law meant that the application was deemed complete. Here, Respondent timely provide a notice of incompleteness.

Petitioner has the burden in a writ brought under the PSA and as such, it is Petitioner's

burden to convince the Court a notice of incompleteness that included some legally correct incomplete items should nevertheless be found to be a violation of the PSA. Petitioner has not cited authority supporting that argument. The Court is not convinced that a partially compliant notice by Respondent should be disregarded in its entirety.

Therefore, while the Court finds that certain items cannot be used in the incompleteness determination, the Court denies the request to find that the May 17 notice was invalid.

e. Second and Third Notices

Petitioner points out that Respondent is limited to the incomplete items raised in the first notice and cannot raise new incomplete items in the second and third notice. (AR 2158-2190; 2191-2224.) Government Code section 65943(a) states that once the initial incompleteness list is provided “the local agency shall not request the applicant to provide any new information that was not stated in the initial list of items that were not complete.” (Gov. Code, § 65943 (a).) Petitioner is correct that the Respondent may not include new items. However, Petitioner has not shown what new items were included in the second and third notices.

Further, the second and third notices contained at least some of the same incomplete items that the Court finds were properly included in the first notice, including the setback information, parking for the parks and the inclusionary housing plan. Thus, as with the first notice, Petitioner has not shown that the second and third notices should be disregarded if they included incomplete items in violation of the PSA.

3. HAA: timeliness (causes of action five and six)

Once a housing development application is complete, the local agency has 60 days (for projects with more than 150 units) to provide a written explanation if the agency believes that the project is inconsistent with an applicable plan, program, policy, ordinance, standard, requirement, or other similar provision. (Gov. Code § 65589.5 (j)(2)(A).) If the agency fails to provide a written explanation within 60 days, “the housing development project shall be deemed consistent, compliant, and in conformity with the applicable plan, program, policy, ordinance, standard, requirement, or other similar provision” (Gov. Code § 65589.5 (j)(2)(B).)

Respondent did not provide a written document identifying whether the development application was inconsistent with the general plan and related documents. However, the deadline for Respondent to identify such inconsistencies is tied to the date the project application is determined to be complete. (Gov. Code § 65589.5(j)(2)(A).) “[D]etermined to be complete” means that the applicant has submitted a complete application pursuant to Section 65943.” (Gov. Code § 65589.5(h)(10).) Thus, if Petitioner is found to have submitted a complete application under the PSA, the time for Respondent to provide its plan consistency analysis would start to run. Here, Petitioner argues that its project was deemed complete under the PSA as of May 19, 2024 because Respondent’s notice of incomplete application violated the PSA. Petitioner’s argument hinges on a finding that the project was deemed complete as of May 19, 2024, however, as explained above, the May 17 notice included items that were permissible and thus, Respondent provided a timely notice under the PSA. Therefore, project was not deemed complete as of May 19, 2024.

4. *PSA: Appeal Deadline (cause of action two)*

Compliance with the PSA is normally reviewed as an administrative writ. Here, however, the argument is that Petitioner was denied a hearing before the Board, which potentially raises issues in a traditional writ. Therefore, the Court has considered this argument under both traditional and administrative writ standards.

The PSA provides a process and deadlines for appealing the agency's determination that an application is not complete. Government Code section 65943(c) provides in part:

If the application together with the submitted materials are determined not to be complete pursuant to subdivision (b), the public agency shall provide a process for the applicant to appeal that decision in writing to the governing body of the agency or, if there is no governing body, to the director of the agency, as provided by that agency. A city or county shall provide that the right of appeal is to the governing body or, at their option, the planning commission, or both.

There shall be a final written determination by the agency on the appeal not later than 60 calendar days after receipt of the applicant's written appeal. The fact that an appeal is permitted to both the planning commission and to the governing body does not extend the 60-day period. Notwithstanding a decision pursuant to subdivision (b) that the application and submitted materials are not complete, if the final written determination on the appeal is not made within that 60-day period, the application with the submitted materials shall be deemed complete for the purposes of this chapter.

(Gov. Code § 65943 (c).)

Petitioner filed its appeal on December 23, 2024. (AR 2236.) Petitioner argues that the statutory 60-day deadline for a final determination was February 21, 2025. Here, the County's Planning Commission issued a written ruling on February 12, 2025. (AR 1.) Petitioner attempted to appeal the Planning Commission's decision on February 21, 2025 (AR 2246), which was the deadline for a final written determination by the County. The County denied this appeal to the Board of Supervisors. (AR 2267.)

The Planning Commission's decision was within the 60-day time limit, however, Petitioner argues that it was entitled to a hearing before the Board of Supervisors and was denied that hearing. Petitioner argues that since it was entitled to a hearing before the Board and none was provided within the 60 day time limit the project should be deemed complete. Thus, the key question here is whether Petitioner was entitled to appeal the Planning Commission's decision to the Board of Supervisors.

Petitioner relies on Contra Costa County Code sections 26-2.2406 and 26-2.1402(4). (Petitioner's RJN C and Respondent's RJN E.)

Section 26-2.2406 states that "An appellant may appeal a decision of a division of the planning agency, to the appellant division... by filing a written notice of appeal" The section

includes a table showing that decisions by the planning commission are appealed to the board of appeals within 10 days.

Section 26-2.1402 states in part that “The board of supervisors, as the legislative body, shall:... (4) Be the final appellate body on all matters as specified in this chapter.”

Nothing in Chapter 26-2 specifically addresses completeness determinations or the PSA.

Respondent points to section 26.2-2204, which lists the types of hearings included in this chapter and Respondent points out that Section 26-2-2204 does not include a completeness determination pursuant to Section 65943. Thus, Respondent argues that a completeness determination is not a matter specified in this chapter (Chapter 26-2) and therefore, Petitioner did not have the right to appeal to the Board of Supervisors.

Respondent argues that the PSA gives Respondent the option of hearing the appeal before the board or the planning commission or both. Here, Respondent elected to have the planning commission hear and decide the issue. Respondent notified Petitioner that the appeal would be heard by the planning commission and that its decision would be final on December 19, 2024. (AR 2233.)

Respondent also points out that the appeal timelines in Chapter 26-2 are longer than those contemplated by the PSA, including 45 days for the planning commission to provide a written decision and 90 days for the Board to provide its written decision. (26-2.2210.)

Here, the PSA states that an appeal of the completeness determination is heard by “the governing body [the Board] or, at [the County’s] option, the planning commission, or both.” On December 19, 2024, the County notified Petitioner that the hearing would be before the Planning Commission and the hearing would be final. Thus, the County exercised its option to have the appeal heard by the Planning Commission.

Petitioner argues that Chapter 26-2 must apply here because that Chapter creates the Planning Commission and gives it its authority. And further, section 26-2 creates a system where the Board is the final appellate body for all matters specified in this Chapter. (Chapter 26-2.1402.)

While Petitioner’s argument has some logic, it does not address the language in the PSA that states the County may decide whether the appeal goes to the board or the planning commission. In reply, Petitioner argues that “[t]he phrase ‘at their option’ describes how a county initially structures its appellate framework through legislation. It gives the county a choice when establishing its code: route appeals to the governing body, to the planning commission, or both. It does not create a roving authority for staff to route appeals after the legislative choice has been made.” (Reply p. 9-10.) But Petitioner provides no legal citations for this position. Therefore, the Court does not find Petitioner’s interpretation of the PSA “at their option” language persuasive.

Instead, the Court finds that the PSA permits the County to decide whether the appeal of the completeness determination should be made to the Board, the planning commission or both on a case by case basis. Here, the County notified Petitioner of its decision before Petitioner file the appeal and thus, the County clearly exercised its option.

The Court notes, however, that it would provide clarity for the County's Ordinance to address how and when such an election is made, but the Court cannot find that the County erred in this case.

5. Subdivision Map Act (cause of action seven)

Petitioner did not address its subdivision map act claim until reply, which waives the argument. Further, the argument is based upon the main theories of violations of the PSA and HAA and without those violations, Petitioner cannot show the SMA was violated.

6. Declaratory Relief (cause of action eight)

Respondent argues that the declaratory relief claim is derivative of the writ claims and fails for the same reason the writ claims fail. In reply, Petitioner appears to concede that the declaratory relief claim is based upon the same theory as the writ claims. Since this Court finds that the writ claims fail, the Court finds that the declaratory relief claim also fails.

Judicial Notice

The Court grants Petitioner's requests for judicial notice as to exhibits A, C, D and F. The Court denies Petitioner's requests for judicial notice as to exhibits B and E as these documents were not in existence at the time Petitioner's application was considered.

The Court grants Respondent's requests for judicial notice as to exhibits A to E.

Conclusion

Petitioner's writ claims, causes of action one through seven are denied. Further, the Court finds that Petitioner has not shown that it will prevail on its declaratory relief claim, and that claim is hereby dismissed.